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Bangladesh must restore land rights of Indigenous People

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Indigenous People in the Chittagong Hill Tracts have been fighting for their rights.

It was more than 17 years ago — on 12 June 1996 — that plainclothes security personnel entered the house of **Kalpana Chakma**, blindfolded her along with her brothers and took her away. She has not been seen since.

Chakma was an activist working for the rights of the Pahari Indigenous People in Bangladesh's southeastern Chittagong Hill Tracts (CHT). In particular, she campaigned tirelessly for women's rights, and is still a symbol for indigenous rights in the region. Every 12 June, Pahari women activists gather to commemorate her "disappearance" and call for an independent inquiry to find out what happened to her. Partly to commemorate Chakma's case, Amnesty International this June released a report, **Pushed to the Edge**, which looks at the immense struggles facing the Pahari Indigenous People in the Chittagong Hill Tracts. Today, 9 August 2013, is the International Day of the World's Indigenous People – and we are using the date to renew our efforts to highlight the decades of plight and struggle of the Pahari, just one of many Indigenous Peoples around the world whose rights are still being trampled on.

The Bangladeshi authorities' failure to address land rights in the region has not only left tens of thousands of Pahari homeless without access to their traditional lands, but also fueled tensions with Bengali settlers, which frequently erupt into violent clashes.

The Chittagong Hill Tracts (CHT) makes up an isolated and remote region in Bangladesh. Unlike the rest of the country, which is flat and at risk of flooding, the CHT consists of rolling hills and deep valleys. It is home to various Indigenous Peoples – collectively known as Pahari.

It has long seen armed conflict over the Pahari demands for greater autonomy, until a 1997 peace accord formally brought an end to hostilities. The violence, however, had a devastating effect on the CHT – countless people were forced to flee their homes, many of which had no option but to take refuge in the surrounding forest areas.

During the conflict a government policy to move Bengali settlers into the region, has fuelled tensions and led to frequent clashes. Pahari tend to suffer disproportionately in the violence, which has over recent years left hundreds of Pahari families homeless: their houses burned down in mob violence triggered by land disputes. Still today, it is estimated that some 90,000 Pahari families remain internally **displaced**.

The peace accord included provisions both for greater regional autonomy in the CHT, as well as the establishment of a Land Commission that would settle land ownership claims, with a view to restoring the Pahari traditional lands to them. But, more than 15 years later, this has at best only been partially fulfilled; the land commission has yet to make a ruling on a single case.

The peace accord also called for the removal of all temporary army camps from the region, but the CHT still remains the country's most militarized region today. The army presence is obvious to anyone visiting — camps are dotted along all the main roads and throughout the region. To Pahari villagers, this gives the impression of being under constant surveillance.

A Pahari indigenous woman told us: ““We are now left with no land to farm. We have the army at very close proximity and I feel very insecure even walking short distances. There are checkpoints we have to cross if we want to travel a bit further in search of fuel. Our home has become an insecure unsafe place to live. I'm now constantly worried about getting food for my family and the security of my children.”

This combination — the heavy military presence, the inflow of Bengali migrants, and the unresolved land issues — makes for a volatile mix. Clashes between the Pahari and Bengali settlers are common, often affecting the Pahari badly, who feel the military tend to take the Bengalis' side.

Many Pahari have no formal record of ownership of their lands, making them constantly vulnerable to dispossession by governments and private parties. Successive Bangladeshi government have also operated on the assumption that these lands are “owned” by the state. But this ignores the fact that, under international human rights law, Indigenous Peoples have a right to their traditional lands.

These lands are not just crucial for the livelihoods of people in the region, but for many Pahari their lands are also intimately linked to their culture, identity and way of life. Indeed, almost all those who Amnesty International met in the CHT— whether Bengali settlers, Pahari villagers and leaders, or army/government officials – felt that addressing the land issue was central to resolving many of the problems in the region today.

The Awami League — the party in government — has made repeated promises to fulfill the terms of the 1997 peace accord, but has shown no political will to follow through on this. With Bangladesh set for general elections next year, it is not too late to do so – but urgent action is needed.

Bangladesh must respect its obligations under international human rights law – including the UN Declaration on the Rights of Indigenous Peoples and the International Labour

Organisation Convention on Indigenous and Tribal Peoples No.107 – and take concrete steps to return the Paharis’ traditional lands to them, with the effective participation of Pahari women and men in the process.

The Land Commission could play a crucial role in solving the protracted land disputes, but years of official neglect and exclusion of Paharis from its decision making means that it has become little more than an empty shell. However, a **new bill on the Commission** was introduced in parliament in June this year – this has to be taken seriously by the government, and the Commission should be assigned the resources and priority it needs to perform its function.

One villager we spoke to summed up the Pahari’s decade-long struggle in a simple but poignant way: “You see all these hills around — they used to be ours, but the settlers have taken them.”

It is high time for the Bangladeshi authorities to take concrete measures to protect Pahari people’s fundamental human rights.

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